

COLLECTIVE BARGAINING AGREEMENT



**Carterville Education Association
IEA/NEA**

**Community Unit School District #5
Board of Education**

**Term: 2022-2025
Effective Date: August 8, 2022
Expiration Date: August 1, 2025**

TABLE OF CONTENTS

ARTICLE	PAGE
ARTICLE I—RECOGNITION	
A. Definitions	1
B. Scope	1
C. Employment Contracts.....	1
D. Fair Share	1
ARTICLE II—ASSOCIATION RIGHTS AND RESPONSIBILITIES	
A. Use of School Facilities.....	2
B. Inter-School Mail.....	2
C. Posting of Notices	2
D. Use of Equipment.....	3
E. Notification of Meetings	3
F. Financial and Other Data	3
G. No Strike Clause	3
H. Association Meetings.....	3
I. Contract Distribution.....	3
J. Teacher’s Lounges.....	4
K. School Calendar.....	4
L. Meeting with Board	4
ARTICLE III—TEACHER RIGHTS	
A. Appearance Before the Board.....	4
B. Personnel File	4
C. Parent-Teacher Conferences.....	5
D. Parent Complaint Procedure.....	5
E. Building Keys	5
F. School Code Rights.....	5
G. Non Discrimination	5
ARTICLE IV—ASSIGNMENTS	
A. Notification of Assignments	6
B. Teacher Workday	6
C. Internal Substitution	6
D. Planning Time.....	6
E. Grade Reporting.....	6
F. Early Dismissal.....	7
G. Campus Supervision	7
H. Inclusion	7
I. Class Size	7
J. Medication	7
K. Promotion and Graduation Ceremonies.....	7
ARTICLE V—VACANCIES, TRANSFERS AND PROMOTIONS	
A. Posting and Notification.....	7
B. Voluntary Transfers.....	8
C. Involuntary Transfer.....	8
D. Coaching/Extra-duty positions	8
ARTICLE VI—PROFESSIONAL GRIEVANCE PROCEDURE	
A. Definition and Scope of Grievance Procedure	8
B. Procedure.....	9
C. By-Passing Steps.....	10
D. Class Grievances.....	10
E. Filing of Materials.....	10
F. No Interference With Instructional Program	10

ARTICLE VII—LEAVES	
A. Sick Leave	10
B. Personal Leave	11
C. Parental Leave.....	12
D. Bereavement Leave.....	12
E. Association Leave	13
F. Professional Leave.....	13
G. Family and Medical Leave Act.....	13
H. Additional Non-Paid Leaves of Absence	13
ARTICLE VIII—EMPLOYEE EVALUATION	
A. Teacher Evaluation.....	13
B. Evaluation Procedures	14
ARTICLE IX—REDUCTION IN FORCE	
A. Notification/Association Views	14
B. Reduction of Employees	14
C. Criteria for Retention	15
D. Reduction/Retention of Seniority/Recall	15
E. Rehiring Procedures	15
F. Priority For Temporary Employment	15
G. Continuation of Insurance Benefits	15
ARTICLE X—PAYROLL DEDUCTIONS	
A. Dues Deduction.....	16
B. Dues Remitted To Association	16
C. Indemnification and Hold Harmless.....	16
ARTICLE XI—SALARY AND FRINGE BENEFITS	
A. Salary Schedule	16
B. Health and Dental Insurance.....	16
C. Payment To Teachers’ Retirement System	17
D. Pay Schedule	17
E. Mileage.....	17
F. Conference/Meeting.....	17
G. Retirement Incentive	18
H. Recognition of Prior Experience.....	18
I. Latchkey	19
ARTICLE XII—NEGOTIATION AND MEDIATION PROCEDURES	
A. Power to Negotiate	19
B. Negotiation Representatives.....	19
C. Tentative Agreement	19
D. Mediation Procedures.....	29
ARTICLE XIII—EFFECT OF AGREEMENT	
A. Maintenance of Standards.....	19
B. Savings Clause	20
C. Duration and Acceptance of Agreement	20
D. Scope of Agreement.....	20
Teacher Salary Schedule 2022-2023	21
Teacher Salary Schedule 2023-2024	22
Teacher Salary Schedule 2024-2025	23
Extra-Duty Stipends.....	24
New Certified Staff Employment Terms Acknowledgement Form	26

ARTICLE I—RECOGNITION

Except as expressly provided otherwise in this contract, the determination and administration of school policy, the operation and management of the schools, and the direction and supervision of employees are vested exclusively in the Board of Education. The board, on behalf of the electors of the district, retains and reserves unto itself all powers and duties conferred upon and vested in it by the Educational Labor Relations Act and other Statutes of the State of Illinois, and the sole right and authority to manage the affairs of the school district. The board shall retain unto itself all powers and duties concerning matters of inherent managerial policy, which shall include, but are not limited to, such areas of discretion or policy, as the function of the employer, standards of services, its overall budget, the organizational structure, and selection of new employees, and direction of employees.

A. Definitions

The Board of Education of Community Unit School District No. 5, Williamson County, Carterville, Illinois (hereinafter referred to as the “Board”), recognizes the Carterville Education Association, an affiliate of the Illinois Education Association (hereinafter referred to as the “Association”), as the sole negotiation agent for all full-time and regularly employed part time certificated personnel (hereinafter referred to as “teachers”), except the Superintendent, Assistant Superintendent, any other central office staff, principals, teacher aides, substitutes and any other positions which may be created which shall include responsibility for making recommendations for the hiring, dismissal, transfer or discipline of any teacher. All benefits specified in this agreement for regularly-employed part-time teachers shall be proportionate to their workday unless otherwise specified in this agreement.

B. Scope

The parties agree to negotiate in good faith with respect to salaries, related economic fringe benefits, and leaves of absence, grievance procedure, Association rights, negotiations procedures and working conditions.

C. Employment Contracts

The Board shall not negotiate with any teacher individually during the duration of this Agreement.

D. Fair Share

1. It is recognized that the Association’s duties as the sole and exclusive bargaining agent entail expenses for collective bargaining and contract administration which appropriately are shared by all teachers who are beneficiaries of said Agreement. To this end, if a teacher does not join the Association within fourteen (14) days after posting of the notice required in subparagraph a, the Board shall deduct a sum equivalent to the proportionate share of the costs of the services rendered by the Association for collective bargaining and contract administration in its role as sole and exclusive bargaining agent in equal payments from the regular salary check of the teacher in the same manner as it deducts dues for members of the Association provided:
 - a) The Association has posted the appropriate notices of imposition of such fair share fee in accordance with the rules and regulations of the IELRB and,
 - b) The Association has annually certified in writing to the Board the amount of such fair share fee and annually certified in writing that such notice has been posted.

2. The Board shall begin such fair share fee deduction no earlier than fourteen (14) days (or any later period as required by the Rules and Regulations of the IELRB) after certification by the Association as described in paragraph 1 a and b of the Article.
3. The Association, the Illinois Education Association, and the National Education Association agree to defend, indemnify, and save the Board harmless against any claims, demand, suit, or other form of liability which may arise by reason of any action taken by the Association or the Board in complying with the provisions of the Section, including reimbursement for any legal fees or expenses incurred in connection therewith.
4. In the event a teacher objects to the amount of such fee, the Board shall continue to deduct the fee and the Board shall proceed in accordance with the Rules and Regulations of the IELRB concerning such protests.
5. If a non-member teacher declares the right of non-association based upon bona fide religious tenets or teaching of a church or religious body of which such teacher is a member, such teacher shall be required to pay an amount equal to the teacher's proportionate share to a non-religious charitable organization mutually agreed upon by the teacher and the Association. If the teacher and the Association are unable to reach agreement on the matter, a charitable organization shall be selected from a list established and approved by the Illinois Educational Labor Relations Board in accordance with its rules.

ARTICLE II—ASSOCIATION RIGHTS AND RESPONSIBILITIES

A. Use of School Facilities

The Association shall have the right to hold meetings of its membership before or after school on School District property, provided that such meetings in no way interfere with any aspect of the total instructional program and any other previously scheduled activities and, provided that, if such meetings entail additional maintenance, custodial or other expenses related to the use, the Association will pay such costs. Notification for such use shall be submitted to the Principal of the building at least twenty-four (24) hours in advance of the time of intended use. If the meeting shall involve more than twenty (20) persons where less than eighty percent (80%) of those attending are employees of the District, a request for permission to use the building shall be made to the Superintendent at least forty-eight (48) hours in advance of intended use.

B. Inter-School Mail

The Association shall have the right to use the District's inter-school distribution facilities and teacher mailboxes for a reasonable quantity of Association materials provided that, if communications are not individually addressed and if submitted to more than twenty-five percent (25%) of the teachers in each single building, such material shall be properly identified as official Association publications and a copy thereof concurrently provided to the Principal or Superintendent. A copy of Association material(s) individually addressed and sealed need not be given to the Principal or Superintendent.

C. Posting of Notices

The Association shall be provided with bulletin board space where available in each school. Only authorized representatives of the Association will use bulletin boards for Association announcements, and all materials posted will relate only to the Association's official business. A copy of all announcements and materials shall be provided to the Principal.

D. Use of Equipment

The Association may use, with prior permission of the Superintendent/Principal or his/her designee the duplicating equipment located in various schools, provided said use shall not interfere with the educational program. The Association shall promptly reimburse the District for the cost of fluid, paper, or repairs incident to said use.

E. Notification of Meetings

The President of the Association or his/her designee shall be given written or verbal notice of all regular or special meetings of the Board, together with a copy of the agenda or statement of purpose of such meeting at least twenty-four (24) hours prior to the scheduled time of such meeting. One (1) copy of all Board minutes shall be given to the President of the Association or his/her designee once the minutes have been prepared and officially approved by the Board.

F. Financial and Other Data

The Board shall provide the Association in response to reasonable requests, a copy of the regularly-prepared public information necessary for negotiations or the processing of a grievance, such as the current annual audit, the current tentative and adopted budgets, current monthly financial statements, current annual financial reports, register of certificated personnel, salary scatter gram, annual census of pupil membership, provided that any extraordinary costs of preparing any copy shall be borne by the Association and provided that this section shall not require the Board to research, assemble or specially prepare any data.

G. No Strike Clause

It is the intention of the parties to maintain peaceful, orderly relations and efficient, uninterrupted service within the School District. Set forth in the Agreement are the obligations of the Association and the teachers it represents. Further, there are provided procedures through which the Association and teachers can seek redress for any grievance. For the life of this Agreement, the Association will not cause, nor will any member of the Association take part in any work stoppage, sit-down, stay-in or slow-down affecting any site operated by the Board of Education or any curtailment of work or restriction of services or interference with the operations of the Board of Education in any manner.

H. Association Meetings

The Association shall be granted three (3) one hour early dismissal days per school year for the purpose of conducting Association business. Additional Association meetings may be scheduled upon mutual agreement between the Association President and the Superintendent.

I. Contract Distribution

Within thirty (30) calendar days following ratification by both parties of this Agreement, the Board shall deliver a copy of this Agreement to the President of the Association. The Association shall be responsible, at its expense, for preparing and delivering copies of the ratified Agreement to all of the teachers as defined in Article I (Recognition).

J. Teachers' Lounges

Current and future facilities shall have designated teachers' lounges, and they shall be used for such purposes during the term of this Agreement.

K. School Calendar

The Association shall have the right to present to the Superintendent suggestions in regard to the school calendar prior to his making recommendations to the Board. The Board shall determine the official calendar. This paragraph is not subject to the grievance procedure.

L. Meeting with Board

The Association and the Board agree to hold meetings up to four times each year in order to facilitate effective communications. The Association representatives will meet with the Board representatives and the Superintendent only, on a date mutually agreed upon by the Association President and the Superintendent.

ARTICLE III—TEACHER RIGHTS

A. Appearance before the Board

When any teacher is required to appear before the Board or before any Board Committee concerning any matter which could affect the continuation of that teacher in his/her employment or salary, the teacher shall be given forty-eight (48) hours prior written notice of the specific reasons for such an interview. A recording of such meeting or interview shall not be made public or transcribed for public disclosure. It may be used in a grievance related to the reason the teacher was required to attend the Board or committee meeting or in a hearing related to the dismissal of said teacher.

B. Personnel File

The Board shall maintain a central personnel file for each teacher. Each teacher shall have the right, upon request, to review the contents of his/her own personnel file. Such review may be by appointment during normal office business hours (but not including the times when teachers have instructional responsibilities) and in the presence of a designated employee of the Board. No teacher shall remove any material from a personnel file; however, a teacher shall have the right to copy any material available to the teacher under this section or to have such copies made by District office personnel. Teachers shall be entitled to one free copy in a school term, of any material in his/her file. Confidential material, such as recommendations by colleges or universities, or evaluations or recommendations of a teacher by a previous employer shall not be deemed to be a part of the teacher personnel file described in this section. Teachers shall be given copies of all materials placed in their personnel file within five (5) working days of the date of filing. A teacher shall be afforded an opportunity to attach a written response to any material in his/her personnel file.

Anytime a Freedom of Information Act (FOIA) request is made by a third party and the District releases said materials held within a teacher's personnel file to that third party, the teacher shall be notified immediately of the request and by whom the request was made. Teachers shall be given a copy of all documents given to a third party, naming the third party, prior to the time they are released. Further, if a request for information is made, under FOIA or otherwise, specifically targeting a teacher by name, the

teacher shall be notified immediately of the request and by whom the request was made, regardless of whether the District was legally obligated to release information.

C. Parent-Teacher Conferences

Parent-Teacher conferences on scheduled parent-teacher conference days may be arranged by the teachers, secretary, or principal. Other conference times shall be set to accommodate the schedules of all persons involved. In all instances it should be remembered that parents and teachers have the mutual responsibility for the academic growth of the students and it is to everyone's benefit to cooperate. Teachers are expected to make an effort to contact parents whose child may be at risk. Teachers are expected to hold parent-teacher conferences on the scheduled days unless excused by the building principal and superintendent. Parent-teacher conferences will not be held on election days.

D. Parent Complaint Procedure

In the event a complaint by a parent of a student is directed toward a teacher, the parent shall be referred to the appropriate building principal or immediate supervisor. The following procedure shall be used if the parent(s) and teacher cannot resolve the issue:

1. The Principal or immediate supervisor will encourage the parent(s) to meet with the teacher to discuss and resolve the problem. If both the parent(s) and the teacher agree, the Principal or immediate supervisor, will schedule a meeting between the teacher and the parent(s) during the teacher's preparation period or other free time.
2. If the parent-teacher conference does not resolve the matter, a conference shall be set up by the Principal or immediate supervisor, including the Principal, immediate supervisor, the teacher, and the parent(s).
3. If the above conferences do not resolve the matter, the Principal or immediate supervisor, shall set up another conference involving the former plus the Superintendent. The decision of the Superintendent shall be final unless the complainant should appeal to the Board. If the Board members or the Superintendent are contacted by parents, they shall refer the parents to the proper procedure and not become part of any complaint at the initial stage by encouragement or agreement.

If the Superintendent and/or Board members by-pass the above procedure and become part of any complaint before the proper procedure is followed, the matter will not become part of the teacher's personnel file.

E. Building Keys

Building keys will be available to teachers on a yearly check-out basis.

F. School Code Rights

Nothing contained herein shall be construed to deny any teacher his/her rights under The School Code of Illinois, except as modified by the terms of this Agreement.

G. Non-Discrimination

The Association and the Board agree that they will not discriminate against any person because of race, color, national origin, sex, or religious affiliation in the application of the terms of this agreement.

ARTICLE IV - ASSIGNMENTS

A. Notification of Assignments

Teachers shall be given written notice of their anticipated assignments for the forthcoming year prior to the end of the school term. In the event any changes in the assignment are proposed, the teacher affected shall be notified no later than the end of the school year. Prior to a final decision on any change in teaching assignments, a meeting to include the teacher, the building principal, and a certified representative of the employee's choice (e.g. Department Chair or grade representative) will be held. If the teacher is not satisfied with the assignment, he/she shall be permitted to resign as an employee of the District. In the event that emergency administrative adjustments will be made during the summer, the administration will make every effort to contact the affected teacher. If the teacher cannot be reached within a sufficient time period, the administration reserves the right to make necessary changes without teacher notification.

B. Teacher Workday

Student starting and dismissal time, including the teacher workday, at all schools shall be determined by the Board of Education as required by the individual needs of each school. The normal teacher workday shall be from 8:00 a.m. until 3:15 p.m. unless individual building schedules require adjustments to the starting and/or dismissal times. Adjusted teacher workdays shall in no case exceed the total time of a normal teacher workday. Teachers may be required to be in attendance beyond the normal work day for professional conferences and meetings, parent teacher conferences, and such other professional obligations and responsibilities determined and directed by the Superintendent or Acting Superintendent. Each teacher shall be entitled to a duty free lunch period equal to that of the students, but, in no case less than thirty (30 minutes). Teachers will not be required to assist in early morning duty prior to the beginning of their teacher workday. This duty will be offered on a voluntary basis. In consideration for this duty, the participating teachers will be the choice of 1) leaving early for a time period equal to the time period of duty served as long as it does not interrupt instructional time or cause the teacher to miss regularly scheduled staff meetings or 2) being compensated at the current rate paid to a detention supervisor. Teachers may be required to be in attendance beyond the normal workday for regularly scheduled staff meetings. If the need arises for a meeting longer than one hour, notice must be given two days in advance.

C. Internal Substitution

When it becomes necessary for a teacher to assume the responsibility for a class of another teacher, the teacher shall be compensated at the current rate paid to a detention supervisor per class period. Volunteers will be used when possible. If no volunteers are available the building principal shall assign teachers in an equitable manner.

D. Planning Time

All full-time certified teachers shall have a daily, duty free planning period of at least thirty (30) minutes consecutive minutes. Carterville High School and Carterville Junior High School teachers shall have at least one period of the school day for this purpose.

E. Grade Reporting

Following the end of grading periods, teachers shall have at least 3 (three) school days before submitting report card grades. Once assignments/test are graded, teachers should record grades into Skyward in a

timely manner. At the end of the school year, teachers shall have three business days following the administration of the teachers last examination if applicable.

F. Early Dismissal

Teachers who are required to perform duties in the evening and who have completed their professional responsibilities for the day may, upon notification of the Principal, leave the building prior to the official close of the school day.

G. Campus Supervision

It is the responsibility of all District employees to curtail inappropriate behavior by students on school property. Teachers are expected to be in their classroom during class time. When not otherwise engaged in school business, teachers should monitor hallways during passing periods. All incidents of bullying shall be reported to their building principal or assistant.

H. Inclusion

When students with special needs are included into regular education classrooms, necessary training and support shall be provided. Special consideration shall include the safety and health of all classroom students and employees. If the class size or the nature and intensity of the student's special needs dictate, then class size shall be reduced or appropriate support staff provided. Educational personnel who are assigned students with special needs will be evaluated on professional procedures and techniques.

I. Class Size

Class size optimums are for the benefit of the students. Class size shall be made as equal and equitable as possible throughout each building and the school district to the degree that adequate resources are available.

J. Medication

The administering of medication shall be in accordance with the school code.

K. Promotion or Graduation Ceremonies

Junior High School and High school teachers are expected to attend their respective Promotion or Graduation ceremonies unless excused by the building principal.

ARTICLE V—VACANCIES, TRANSFERS AND PROMOTIONS

A. Posting and Notification

The Superintendent shall have posted in all school buildings a notice of all vacancies in the school district (except those that report directly to the Board of Education), including vacancies in promotional positions, as they occur. Notice of vacancies shall be accompanied by a detailed job description, a statement of minimum qualifications and salary range. An official list of teachers that will be leaving the district for the upcoming school year, and that can be identified by January 1st through letters of resignation or retirement, will be sent to all buildings by the beginning of the second semester. No vacancy, except in case of emergency, shall be filled on a temporary basis until such vacancy shall have been posted at the

beginning of the second semester for at least five (5) employee workdays. During the summer vacation, vacancy notices will be announced using the Skyward System (or current mass communication system). Promotional positions are defined as those positions paying a salary differential or those which are of an administrative or supervisory nature or both. Communication of anticipated assignments, emergency adjustments to assignments, notice of vacancies, and the list of teachers leaving the district will be directed to certified staff as an exclusive communication.

B. Voluntary Transfers

Any teacher in his/her fourth consecutive year with the District, or beyond, may apply for transfer to another position or building. The application procedure shall consist solely of a written request to the Superintendent. If the request is approved a meeting between the applicant and his/her immediate supervisor shall be scheduled a minimum of thirty (30) days prior to the start of the school year. It is acknowledged that the Superintendent has the responsibility to evaluate qualifications and to make the final decision; however, consideration shall be given to current qualified employees. Reasons for denial of the voluntary transfer shall be provided to the employee in writing if requested.

C. Involuntary Transfer

Involuntary transfers shall be made only in the case of emergencies or in the prevention of undue disruption to the instructional program. Only after all attempts to accommodate a voluntary transfer have failed, the involuntary transfer shall be made on a seniority basis with the least senior staff member being transferred or assigned within the following levels:

- Transfers to the K-6 grade levels will be made with teachers presently assigned to K-6 levels.
- Transfers to the junior high school levels will be made with teachers presently assigned to 5th through 9th grade levels.
- Transfers to the high school levels will be made with teachers presently assigned to 7th through 12th grade levels.

Reasons for an involuntary transfer shall be provided to the employee in writing, if requested. Any employee affected by an involuntary transfer shall be notified immediately and shall be released by the Board from his/her contract at the teacher's request. Teachers involved in an involuntary transfer shall be given special consideration for any subsequent opportunities for transfer.

D. Coaching/Extra-Duty Positions

When extra duty positions are posted for hiring and applicants include both certified and non-certified persons and if the certified teachers' qualifications are equal, the certified teacher will be given priority in the hiring process. The Board of Education's determination as to qualifications of the individual shall be final and the Board shall have the final determination as to the individual to fill such vacancy. If a non-certified person is hired, the qualifications used for making this decision shall be provided to the employee in writing, if requested.

ARTICLE VI—PROFESSIONAL GRIEVANCE PROCEDURE

A. Definition and Scope of Grievance Procedure

1. A grievance is any complaint by the Association or any member of the bargaining unit that there has been a violation, misrepresentation, or misapplication of any specific provision of the Agreement.
2. All time limits shall consist of teacher employment days, except during the summer recess when they shall mean Monday through Friday, exclusive of legal holidays.

3. Every teacher covered by this Agreement shall have the right to present grievances in accordance with the procedure. The Association shall also have this right.
4. Failure of a teacher or the Association to submit or to act on any grievance within the prescribed time limits will act as a bar to any further appeal. An administrator's failure to give the decision within the time limits shall permit the grievant to proceed to the next step. The time limit, however, may be extended by mutual agreement.
5. The initiation of this procedure, other than the informal procedure described in B, shall be conditional upon filing of the formal grievance in writing within thirty (30) calendar days of when the occurrence may reasonably have been ascertained.

B. Procedure

The parties hereto acknowledge that it is usually most desirable for an employee and the employee's immediately involved supervisor to resolve problems through free and informal communications. When requested by the employee, an Association representative may accompany the employee to assist in the informal resolution of the grievance. If, however, the informal process fails to satisfy the employee or the Association, a grievance may be processed as follows:

1. The teacher or the Association may present the grievance in writing to the immediately involved supervisor, who will arrange for a meeting to take place within eight (8) days after receipt of the grievance. The Association's representative, the grievant, and the immediately involved supervisor may be present for the meeting. Within eight (8) days of the meeting, the grievant and the Association shall be provided with the supervisor's written response, including the reasons for the decision.
2. If the grievance is not resolved in Step 1, then the grievant may refer the grievance to the Superintendent or the Superintendent's official designee within six (6) days after receipt of the Step 1 answer or within ten (10) days after the Step 1 meeting, whichever is later. The Superintendent shall arrange for a meeting to take place within eight (8) days of the Superintendent's receipt of the appeal. Each party shall have the right to include in its representation such witnesses or counselors as it deems necessary. Within eight (8) days of the meeting, the Association and the grievant, if other than the Association, shall be provided with the Superintendent's written response, including the reasons for the decision.
3. If the Association is not satisfied with the disposition of the grievance at Step 2 or the time limits expire without the issuance of the Superintendent's written reply, the Association may submit the grievance to final and binding arbitration. The American Arbitration Association shall act as the administrator of the proceedings. The decision of the Arbitrator shall be binding upon the parties. If a demand for arbitration is not filed within twenty (20) days of the receipt of the Step 2 answer, then the grievance shall be deemed withdrawn.
 - a) Neither the Board nor the Association shall be permitted to assert any grounds or evidence before the Arbitrator which were not previously disclosed to the other party.
 - b) The Arbitrator shall have no power to alter the terms of this Agreement. His authority shall be strictly limited to deciding only the issue or issues presented to him by the Board and the Association, and his decision shall be based only upon interpretation of the meaning or the application of the express relevant language of this Agreement.
 - c) Each party shall bear the full costs for its representation in the arbitration. The costs of the Arbitrator and the AAA shall be divided equally between the parties.
 - d) If either party requests a transcript of the proceedings, that party shall bear the full cost of the transcript. If both parties order a transcript, the cost of the two (2) transcripts shall be divided equally between the parties. If a copy of the transcript shall be furnished to the Arbitrator, then the cost for such will be divided equally between the parties.

4. If the Association or any teacher files any claim or complaint in any court of law or appropriate government agency other than under the grievance procedure law of this Agreement, then the Board shall not be required to process the same claim or set of facts through the grievance procedure.
5. The Arbitrator shall have no authority to render an opinion inconsistent with the state or federal law.
6. Hearings under this procedure shall be conducted at a time and place which will afford a fair and reasonable opportunity for all persons, including witnesses entitled to be present, to attend and will be held, insofar as possible, after regular school hours, or during non-teaching time of personnel involved. When such hearings are held at the option of the administration during school hours, any employee whose presence is required shall be excused, without loss of pay, for that purpose.
7. A grievance may be withdrawn at or on any level without establishing precedent, and if withdrawn such grievance shall be treated as never having been filed.

C. By-Passing Steps

If the Association and the Superintendent agree, Step 1 of the grievance procedure may be by-passed and the grievance brought directly to Step 2.

D. Class Grievances

Class grievances involving one or more teachers or one or more supervisors and grievances involving an administrator above the building level may be initially filed by the Association at Step 2.

E. Filing of Materials

All documents, communications and records dealing with the processing of a grievance shall be filed separately from the personnel files of the participants.

F. No Interference with Instructional Program

Any investigation or other handling or processing of any grievance by the grieving teacher or the Association, other than the formal arbitration hearing, shall be conducted so as to result in no interference with or interruption whatsoever of the instructional program and related work activities of the grieving teacher or of the teaching staff.

ARTICLE VII—LEAVES

A. Sick Leave

The normal sick leave accrual for each teacher using two or fewer sick leave days in the prior year, excluding any days used for FMLA or ADA purposes, shall be 18 sick leave days and the normal accrual for a teacher using more than two sick leave days in the prior year, excluding any days used for FMLA or ADA purposes, shall be 16 days. Sick leave days shall be available for use each school year without loss of pay. Teachers can accumulate unlimited sick leave, and there is no “per-occurrence” limitation on the use of sick leave. Sick leave shall be interpreted to mean personal illness, quarantine at home, or serious illness or death in the immediate family or household. The immediate family for the purpose of this section shall include the spouse, children, step-children, parents, sisters, brothers, grandparents, grandparents-in-law, grandchildren, parents-in-law, brothers-in-law, sisters-in-law, and legal guardians. Sick leave shall not be available for the purpose of engaging and participating in a work stoppage of any kind. Teachers using two (2) or fewer sick days in the prior year, excluding any days used for FMLA or ADA purposes, shall have the right to trade up to two sick leave days for one personal day if notification is given to the District in the

prior year within five days of the end of the school year. Teachers eligible to receive an extra personal day will be notified by the unit office via email prior to the last day of the school year. Each teacher shall receive an annual accounting of the total number of unused sick leave days within the first week of the school term. All sick days not used shall continue to accumulate. For teachers with ten or more years experience in the district, the normal sick leave accrual using two or fewer sick leave days in the prior year, excluding any days used for FMLA or ADA purposes, shall be 19 sick leave days and the normal accrual for a teacher using more than two sick leave days in the prior year, excluding any days used for FMLA or ADA purposes, shall be 17 days.

The Board of Education agrees to share with the Carterville Education Association a 50% portion of savings, realized as a direct result of the reduction of the total number of sick days used in any school year compared with the average number of total sick days for the preceding three years. An accounting of total number of sick days used by the certified faculty employed by Carterville Unit #5 shall be given to the CEA President, upon his/her request, by August 1 of each year. These proceeds shall be directed to the CEA Scholarship Fund.

This provision shall be reopened for reconsideration upon written demand to bargain by either party provided that the District becomes subject to TRS penalties under this provision, or legislative changes or rule changes affecting what has come to be known as SB 27 for the purpose of negotiating appropriate revisions to assure that the retiring employee shall receive to the maximum extent possible, the full value of the benefit provided under Article VII, A, while avoiding TRS penalties to the District that may arise due to the granting of sick or personal days.

If over half (greater than 50%) of a retiree's unused sick days have been accumulated in the Carterville Unit 5 School District, the employee shall receive a lump sum payment for up to (but not exceeding) 100 unused sick days above what is used for retirement services credit. The sum shall be equal to 75% of the current daily rate of pay for a substitute teacher multiplied by the number of days available. Payment for unused sick leave will be made within three (3) days following the employee's final paycheck. The retiring teacher will work with the superintendent to ensure that all sick days are accounted for properly.

B. Personal Leave

Each teacher shall be entitled to three (3) full or six (6) half days of personal leave for each school year for matters that cannot be handled during non-school days or hours. Personal leave days are not cumulative. Leave requests submitted during non-restricted periods do not require a reason. Unused personal days shall be added to accumulated sick leave. Written requests for personal leave shall be made to the building principal two employment two days prior to the leave day, unless in the case of an emergency. Personal leave requests will not be granted during the following restricted periods: 1) the day immediately preceding or following a school holiday, Thanksgiving, Christmas, and spring breaks, or other school vacations; 2) during school improvement days; parent-teacher conferences; state testing; semester exams; and the first five or last five teacher employment days. A leave request may be submitted in writing during the restricted period for reasons including, but not limited to following: 1) wedding, 2) funeral not covered by bereavement, 3) relative's graduation, 4) property closing, 5) vacation arranged and/or earned through spouse's employment, 6) emergency or other reasons the teacher is required to attend and/or cannot schedule outside the school day or year. Restricted period leave requests will be approved provided the teacher provides documentation supporting the reason for the exception. One additional day of personal leave will be granted if the teacher reimburses the District for the cost of the substitute. Leave requests submitted during non-restricted periods do not require a reason. If unused, such additional day of personal leave shall not be added to accumulated sick leave. This additional day of leave may be denied on a given day if it will result in too many teacher absences in any one building.

C. Parental Leave

1. If a leave of absence is in conjunction with the birth of a child, the leave may include a period of pregnancy related disability, as determined by the attending physician, a period of maternity leave prior to the period of disability, and a child care leave for a period subsequent to the period of disability. All or a portion of the period of disability, may, at the employee's option, be charged to the employee's available sick leave. Leave not charged to sick leave will be unpaid leave. A typical period of disability for parental reasons is considered to be eight (8) to ten (10) weeks. Said parental leave begins post-delivery. Parental leave, as discussed in this section, is included in the leave authorized by the Family Medical Leave Act.
2. Except in an emergency situation, or in the case of adoption, application for parental leave shall be made in writing to the Superintendent or his/her designee a minimum of forty-five (45) calendar days prior to the anticipated beginning date of the leave. At such time, a written statement from the obstetrician or physician shall be provided indicating the expected date of delivery and that, in his/her opinion, the teacher may safely continue employment and perform all regular teaching duties during the pregnancy.
3. The teacher and the Superintendent or his/her designee shall agree upon a plan for the commencement and termination of paid/unpaid leave, taking into consideration medical factors and continuity of instruction to the maximum possible degree. The plan shall include the employee's intentions on returning to the District. The leave shall not exceed the balance of the school year in which the leave commences and one (1) additional school year.
4. Any teacher who has been a salaried employee ninety-five (95) or more days of the school year shall be entitled to such advancement on the salary schedule as he/she would have been entitled if the leave had not been granted. If the leave exceeds the year such leave commences, the second year shall not be considered for step advancement on the salary schedule.
5. A parental leave will be granted to a non-tenured teacher subject to all conditions applicable to a tenured teacher, and provided the term of leave shall not be considered in computing full-time employment under Section 24.11 of the School Code for that purpose or the continuous employment necessary to attain contractual continual service status. Upon return from such leave, the teacher shall be considered to have commenced the first, second, third, or fourth probationary year as the case may be.
6. While on unpaid leave an employee shall at his/her own expense, have the option to remain an active participant in the State Teachers' Retirement System and further, at his/her own expense, participate in the insurance programs of the District, subject to the approval of the insurance carriers and the retirement system.
7. Leave without pay shall be granted because of the placement of a child with the employee for foster care.
8. Employee use of the additional school year parental leave may be limited at the district option. If the district exercises its option to so restrict employee use of the additional school year parental leave option, the right of the specific employees to use the additional school year parent leave shall be allocated among the applicants based on the length of seniority in the district. Additional school year parental leave requests will be considered if received prior to March 1st.

D. Bereavement Leave

The Board shall grant each teacher three (3) funeral days without loss of pay. Leave shall be non-cumulative.

E. Association Leave

The Association shall be guaranteed a maximum of eleven (11) Association leave days for the express purpose of sending representatives to any state conferences or other business pertinent to the Association affairs. These representatives shall be excused without loss of salary providing the Association reimburses the District for the cost of the substitutes and further providing that the leave does not impair the quality of classroom instruction and that a written request for leave has been submitted to the Superintendent or his/her designee five (5) school days in advance of the intended leave. Such leave will be limited to five (5) days per year for any single individual.

F. Professional Leave

Certified teachers, with administrative authorization, shall be granted a minimum of two (2) days of professional leave to attend meetings/workshops/conferences/clinics/graduate coursework obligation, etc. as needed for educational advancement or certificate renewal. Coursework obligation is defined as a course / program requirement that cannot be completed outside of the school day.

G. The Family and Medical Leave Act

The Carterville Unit #5 school district shall comply with the guidelines of the Family and Medical Leave Act.

H. Additional Non-Paid Leaves of Absence

Employees shall have the right to request a leave of absence for reasons not covered by other leaves in this Agreement, pursuant to the following procedures:

1. The request shall be in writing to the superintendent not less than sixty (60) calendar days before the requested start of the leave, except in the case of emergency.
2. The requested leave shall state the: 1) reason for the leave request and 2) beginning and ending dates of the requested leave. Leave shall be for a maximum of one (1) year.
3. To qualify for such a leave, the employee shall state his/her intention for return to the district. For planning purposes, the Board may inquire if the employee's original intent to return to the district has changed. If the employee does not respond within fifteen (15) calendar days following receipt of the Board's inquiry, the employee has confirmed his/her original intent of returning to the district.
4. The Board may grant or deny such leave in its discretion.
5. In the event the Board approves the leave request, the leave shall be without pay or fringe benefits, except the employee shall have the right to remain on the district's insurance plans by paying the full premiums for the time on leave.
6. The Board shall place the returning employee to an equivalent position consistent with qualifications, certification, and the terms of this Agreement.
7. In the event the Board does not approve the leave request, the employee may request, in writing, an explanation for the denial to the superintendent.

ARTICLE VIII—EMPLOYEE EVALUATION

A. Teacher Evaluation

1. The purpose of an evaluation is to accurately and objectively rate a teacher as excellent, proficient, needs improvement, or unsatisfactory, as well as improve teacher quality and promote professional development. Upon teacher request, administration will provide feedback to the teacher in a timely

manner detailing specific areas in which improvement is needed in order to receive an "Excellent" final rating if the teacher has been rated "Proficient".

2. Each non-tenured teacher shall be evaluated at least annually in accordance with the School Code. For each non-tenured teacher, a minimum of three observations shall be required each school year, of which at least two must be formal observations.
3. Each tenured teacher shall be evaluated at least once every two school years, in accordance with the School Code. For each tenured teacher who received either an "excellent" or "proficient" performance evaluation rating in his or her last performance evaluation, a minimum of two observations are required during the cycle in which the current evaluation is conducted, at least one of which must be a formal observation. For each tenured teacher who received a "needs improvement" or "unsatisfactory" performance evaluation rating in his or her last performance evaluation, a minimum of three observations shall be required in the school year immediately following the year in which the "needs improvement" or "unsatisfactory" rating was assigned, of which at least two must be formal observations.
4. Teacher evaluations shall be performed by District personnel legally qualified to conduct evaluations per ISBE rules and training requirements. Qualified evaluators shall have successfully passed the State-developed assessments specific to the evaluation of teachers.

B. Evaluation Procedures

The Board of Education, Administration, and Carterville Education Association will collaborate to revise and update the evaluation plan (including the evaluation instrument and any procedures) in the District as needed.

The parties agree that they will comply with and cooperate in the implementation of all legally-required elements of the Performance Evaluation Reform Act of 2010 ("PERA") and the Education Reform Act of 2011 ("Senate Bill 7").

ARTICLE IX—REDUCTION IN FORCE

A. Notification/Association Views

When in the exclusive and final judgment of the Board it is necessary to decrease the number of teachers employed or to discontinue a particular type of teaching service, the administration shall attempt to accomplish such reduction by attrition. In the event it is determined a reduction in teachers shall occur, written advance notice thereof shall be given to the Association President or designee who shall be given an opportunity to discuss such reduction with the Superintendent and present the view of the Association.

B. Reduction of Employees

Employees shall be dismissed on the basis of the sequence of dismissal list ("RIF" list) for certified employees established annually by the District in accordance with the School Code. Qualification shall be according to the rules and regulations provided by the Illinois State Board of Education and any qualifications established by the School District in accordance with the School Code. Any teacher subject to honorable dismissal/reduction in force shall be notified in writing by certified mail forty five (45) calendar days before the end of the school year.

C. Criteria for Retention

The Association shall be provided the sequence of honorable dismissal list by groupings (1-4) seventy five (75) calendar days prior to the end of the school year. Employees will be provided individual grouping notification following this same timeline. Employees who believe they are not listed in an area they believe they are qualified for, or are not placed in the appropriate grouping (1-4), must notify the Superintendent and Association President in writing within 10 calendar days. If a revision is found necessary, a corrected list shall be created, sent to the Association President, and posted in each attendance center.

D. Reduction/Retention of Seniority/Recall

Tenured teachers reduced to half-time or more, at the direction of the Board, shall accrue seniority equivalent to that given full-time teachers. Acceptance of part-time employment by a teacher shall in no way affect the teacher's rights to recall to a full-time position.

E. Rehiring Procedures

Notice of recall shall be sent to the teacher by certified mail (return receipt requested) to the last address submitted to the Superintendent and/or his/her designee by the teacher. Failure of the teacher to affirmatively respond to such notice within ten (10) calendar days of its receipt or within twenty (20) calendar days of its mailing, whichever is less, shall terminate the responsibility of the Board under this Article.

Recall to available positions, during the term of recall eligibility under the School Code, shall be based upon the employee's qualifications, certifications, and honorable dismissal groupings in accordance with the School Code. Teachers in groups one and two shall have no recall rights. Those teachers in groups three and four shall have right of recall for any available position in reverse order of the lay-offs specified above for two school years following reduction. Teachers in group four with appropriate certification and qualification shall be called back prior to teachers in group three, and recall shall be in seniority order within group (i.e. among those certified and qualified for the position, the most senior employee in group 4 is recalled before the next most senior employee in group 4 would be recalled).

F. Priority for Temporary Employment

During the term of recall eligibility, any released teacher who files a written application shall be given consideration for employment as a substitute, a part-time teacher, or an aide if such positions are available, provided, however, that the released teacher is both certified and legally qualified for the position. The offer for the position shall be made in accordance with the provisions of Section E above.

G. Continuation of Insurance Benefits

When a teacher is honorably dismissed at the end of a school year, the Board will continue to pay the Insurance premium for that employee through the month of August. Additionally, subject to the approval of the insurance carrier, all teachers honorably dismissed in accordance with the provisions of Article IX may participate for a period of eighteen (18) months from the last day of employment in the major medical and hospital insurance program, provided that they promptly submit to the District the premium payments in the sum and at such times as are required for transmittal to the insurance carrier.

ARTICLE X—PAYROLL DEDUCTIONS

A. Dues Deduction

The Board shall deduct from the pay of each teacher, excepting cash pay members, the current membership dues or fair share fee payments of the Association and its affiliates. The name of each teacher with the amount of dues or fair share fees shall be annually certified by the Association and submitted in writing to the Board on or before August 1.

The amount specified will be deducted in ten (10) monthly payments beginning in September and ending in June. For those teachers newly employed prior to the first day of school, certification and notification shall be presented to the Board by September 15. The dues will be in 9 equal payments beginning in October and ending in June. Certification and notification of dues/fees of any new teacher employed after the beginning of the school year shall be within 30 days of employment and dues/fees shall be prorated ending in June. A termination of employment for any reason shall constitute termination of dues/fees deduction on the last day of employment.

B. Dues Remitted To Association

All dues deducted by the Board shall be remitted to the Treasurer of the Association or designee no later than ten (10) days after such deductions are made.

C. Indemnification and Hold Harmless

The Association shall indemnify and hold harmless the Board from any and all claims, demands, suits, and costs incurred in connection with any such claim, demand, or suit resulting from any reasonable action taken or omitted by the Board for the purpose of complying with the provision of this paragraph.

ARTICLE XI—SALARY AND FRINGE BENEFITS

A. Salary Schedule

The salary schedule and extra-duty schedule for each school year covered by this agreement shall be attached to and made part of this Agreement.

B. Health, Dental, Vision, and Life Insurance

The Board of Education shall pay any premiums for individual Health, Dental, Vision, and Life Insurance up to \$950 per month through 2022-2023 insurance year; \$975 per month through 2023-2024 insurance year; and \$1000 per month through 2024-2025 insurance year. If the premiums exceed that amount the excess premiums will be split with the Board paying 50% and the teacher paying 50%.

A committee consisting of five (5) members appointed by Carterville Education Association (CEA) bargaining unit members, three (3) members from the non-certified staff, and one (1) administrator will meet annually to review the current carrier's performance, proposed rate increases, and possible changes in the health, dental, or life insurance benefits. If a new carrier is deemed necessary, it will be identified by the committee with a new proposal being presented to all eligible employees for approval and the Board for ratification.

C. Payment To Teachers' Retirement System

In addition to the annual compensation paid to teachers, the Board shall contribute and remit to the Teachers' Retirement System the full amount required by TRS 9.0% of creditable earnings, which equates to a factor of 9.8901% of the individual's salary plus any other TRS eligible earnings. Any legislative increase beyond 9.0% of creditable earnings will be paid 50% by the Board and 50% by the individual. Additionally, the Board of Education will contribute 1.12% to the State of Illinois Department of Central Management for each teacher's contribution to the Illinois Teacher Health Insurance Security Fund ("THIS"). Any legislated increase beyond 1.12% for 2016-2017 will be paid 50% by the Board and 50% by the individual. The Teachers shall have all vested rights to the funds so remitted as they may subsequently become available from the State of Illinois Teachers' Retirement System. No teacher shall have the option of choosing to receive the amounts contributed by the Board directly, and the assumption and payment of the teachers' required contribution to the Illinois Teachers' Retirement System is a condition of employment made in order to serve the teachers' future services, knowledge, and experience.

D. Pay Schedule

Teachers are to be paid on the 10th and 25th of each month in twenty-four (24) equal installments. If pay should fall on a day the banks are not open, direct deposit will occur on the previous day. If reparations need to be paid to the district due to an overpayment, the teacher will be consulted and a reasonable mutual agreement for repayment terms will be reached. Certified teachers who receive extra-duty stipends will be given the option to receive their payment (in full or in part) as a lump sum during the second paycheck in November. The remainder of the stipend (if applicable) will be appropriated through their regularly scheduled paychecks. The teacher shall submit their request for this type of payment by June 15th. If teachers are notified of new extra-duty responsibilities after June 15th, they will have up to one week to submit their request after notification.

E. Mileage

Teachers shall be paid per mile mileage as stipulated with IRS guidelines as of January 1 of each year for all approved mileage required in relation to their employment other than travel to and from their school assignment at the beginning and following the close of the school day. Mileage for August – December should be turned in by December 31. Mileage for January-May/June should be turned in by the end of school. Payments for both will be paid at the rate determined by IRS.

F. Conference/Meeting

Estimated expenses of up to four hundred dollars (\$400) shall be prepaid to certified personnel who have been administratively authorized to attend a conference/meeting/workshop/clinic. Expenses of four hundred fifty dollars (\$450) shall be prepaid to certified personnel when a substitute teacher is not required (unless a sub is not typically provided). Teachers shall submit receipts and itemization of expenses incurred within two (2) working days after attending any such professional experience. The Board will pay the expenses of one (1) professional experience in an academic area and one (1) in an extracurricular area to a maximum of eight hundred dollars (\$800)/nine hundred dollars (\$900) for each conference/meeting/workshop/clinic (depending upon whether a substitute teacher is required).

G. Retirement Incentive

Pre-retirement Benefit– CEA members, who have qualified for retirement under TRS guidelines, and have been employees of Carterville CUSD #5 for 10 years, may take advantage of the pre-retirement benefit. An irrevocable notice of retirement must be filed by January 15 of the year up to, and including, the school year of retirement. In cases of emergency, the Board shall consider a later date of notification. The pre-retirement period may be from 1-4 years in duration depending upon when the letter of intent to retire is received and the specified date of retirement.

For example, employees who file by January 15, 2012 may indicate a retirement date of 2012, 2013, 2014, or 2015. Using this example, employees indicating retirement in 2012 will have a pre-retirement period of 1 year. Employees indicating retirement in 2013 will have a pre-retirement period of 2 years. Employees indicating retirement in 2014 will have a pre-retirement period of 3 years. Employees indicating retirement in 2015 will have a pre-retirement period of 4 years.

1. The "benefit amount" will be distributed to the employee according to the following:
 - a) For each school year between the time the notice of intent to retire is given and the date of retirement, beginning with the year the notice is given, the employee shall receive his/her creditable earnings being 106% of the previous year's creditable earnings as reported to TRS. In the event the school district would be penalized for offering a 6% incentive, then the school district will offer the maximum allowable increase such that no penalty would be assessed.
 - b) Employees on the extra-duty increment schedule of the year prior to the pre-retirement period must continue their extra duty each year in order to receive their full pre-retirement benefit. If the employee voluntarily elects to forgo the extra duty responsibilities, the cost of their replacement per the Extra Duty Salary Schedule will be deducted from their creditable earnings calculation.
2. This provision for an employee signing such a letter will guarantee the benefit amounts as the minimum to be received regardless of the inclusion or changes in this provision in successor agreements.

In the event there is a legislative change or rule change affecting what has come to be known as SB 27 and the district becomes subject to TRS contributions not contemplated herein, this provision shall be reopened for renegotiation, upon written demand to bargain by either party, to assure that the retiring employee shall receive the maximum benefit possible and the full value of the benefit provided while avoiding TRS penalties to the District that may arise due to the Pre-retirement benefit amount. However, to the extent that any legislative or regulatory changes "grandfather" employees who have already provided their notice of intent to retire, the parties will not renegotiate over terms impacting those employees.

H. Recognition of Prior Experience

In interest of obtaining the best teaching candidate possible, the Board will award prior teaching credit to a newly employed teacher who possesses a valid Illinois Teaching Certificate, and has taught at an accredited public or private institution for those years in which credit in the salary schedule is sought. This will become effective for new employees hired after December 31, 2000. After initial placement on the salary schedule, the employee shall receive credit for advancement on the salary schedule in accordance with any agreement which may then be in effect between the Board of Education and the Association.

I. Latchkey

Teachers will be required to pay the enrollment fee, but will not have to pay a minimum monthly fee for Latchkey services.

ARTICLE XII—NEGOTIATION AND MEDIATION PROCEDURES

A. Power to Negotiate

Both parties agree that it is their mutual responsibility to confer upon their respective representatives the necessary power and authority to make proposals, consider proposals, to make counterproposals during the course of negotiations and to reach tentative agreements.

B. Negotiation Representatives

Each party to negotiations shall select its negotiation representatives provided that the Board shall not select a teacher as herein defined as its representative and the Association shall not select an employee of District No. 5 who is not covered by this Agreement.

C. Tentative Agreement

When the Association and Board reach a tentative agreement on all matters being negotiated, the items will be reduced to writing and shall be submitted first to the membership of the Association for ratification and then to the Board for official approval.

D. Mediation Procedure

If an agreement has not been reached following a reasonable period of good faith bargaining, pursuant to the Illinois Educational Labor Relations Act, either party may request advisory mediation. A written request for advisory mediation by one party shall be considered as a joint request for advisory mediation and both parties shall join in submitting a formal written request to the Federal Mediation and Conciliation Service requesting mediation services. The mediator shall not, without the consent of both parties, make findings of fact or recommend terms of settlement. Any costs relating to the mediation shall be shared equally by the Board and the Association.

ARTICLE XIII—EFFECT OF AGREEMENT

A. Maintenance of Standards

Except as this Agreement shall otherwise provide, all terms and conditions of employment applicable on the signing day of this Agreement as established by the rules, regulations and/or written policies of the Board in force on said date shall continue to be so applicable during the term of this Agreement. Unless otherwise provided in this Agreement, nothing contained herein, shall be interpreted and/or applied so as to eliminate, reduce, or otherwise detract from any teacher benefit existing prior to its effective date. The terms and conditions may be altered, changed, added to, deleted from or modified only through the voluntary, mutual consent of the parties in a written amendment executed according to the provisions of this Agreement.

B. Savings Clause

Should any article, section or clause in this Agreement be declared illegal by a court of competent jurisdiction, said article, section or clause, as the case may be, shall be automatically deleted from this Agreement to the extent that it violated the law. The remaining articles, sections and clauses shall remain in full force and effect for the duration of the Agreement, if not affected by the deleted article, section or clause.

C. Duration and Acceptance of Agreement

1. This agreement shall become effective August 8, 2022.
2. This agreement shall continue in effect until August 1, 2025.
3. If no agreement is reached within the sixty day reopening period on each of the aforementioned items as set forth in sub point 3 the entire agreement shall be considered expired.
4. Once the agreement has expired the Association retains full rights under the IELRA.
5. Any negotiations that may take place after the sixty day period shall be limited to the provisions that were reopened and only on those items where no tentative agreement has been reached. No new items may be introduced by the parties except by mutual consent.

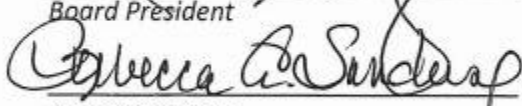
D. Scope of Agreement

This agreement shall supersede and have precedence over any policies, rules, regulations, or practices of the employer which shall be contrary to or inconsistent with the terms of this agreement.

Carterville Education Association


President

Carterville Unit School District No. 5


Board President

Board Secretary

2022-2023 Salary Schedule				
Step	BS	BS+16	MS	MS+16
0	\$46,000	\$47,850	\$50,350	\$52,200
1	\$46,893	\$48,842	\$50,895	\$52,894
2	\$47,716	\$49,663	\$51,716	\$53,717
3	\$48,537	\$50,485	\$52,538	\$54,538
4	\$49,360	\$51,307	\$53,360	\$55,360
5	\$50,181	\$52,129	\$54,183	\$56,183
6	\$51,004	\$52,951	\$55,004	\$57,005
7	\$51,827	\$53,774	\$55,827	\$57,827
8	\$52,648	\$54,595	\$56,627	\$58,649
9	\$53,470	\$55,417	\$57,471	\$59,471
10	\$54,405	\$56,352	\$58,405	\$60,405
11	\$55,226	\$57,173	\$59,226	\$61,227
12	\$56,049	\$57,996	\$60,049	\$62,049
13	\$56,870	\$58,817	\$60,872	\$62,872
14	\$57,810	\$59,758	\$61,811	\$63,811
15	\$58,749	\$60,697	\$62,750	\$64,750
16	\$59,690	\$61,637	\$63,690	\$65,690
17	\$60,629	\$62,576	\$64,629	\$66,629
18	\$61,568	\$63,515	\$65,569	\$67,570
19	\$62,508	\$64,455	\$66,509	\$68,827
20	\$63,559	\$65,506	\$67,559	\$69,560
21	\$64,499	\$66,446	\$68,499	\$70,500
22	\$65,438	\$67,385	\$69,438	\$71,439
23	\$66,377	\$68,325	\$70,379	\$72,379
24	\$67,317	\$69,265	\$71,318	\$73,318
25	\$68,316	\$70,263	\$72,316	\$74,317
26	\$69,314	\$71,262	\$73,315	\$75,315
27	\$70,312	\$72,259	\$74,312	\$76,313
28	\$71,310	\$73,258	\$75,311	\$77,311
29	\$72,309	\$74,256	\$76,309	\$78,310
30	\$73,307	\$75,255	\$77,308	\$79,308
31	\$74,306	\$76,253	\$78,305	\$80,306
32	\$75,303	\$77,251	\$79,304	\$81,304

2023-2024 Salary Schedule				
Step	BS	BS+16	MS	MS+16
0	\$46,900	\$48,750	\$51,250	\$53,100
1	\$47,800	\$49,650	\$52,150	\$54,000
2	\$48,700	\$50,550	\$53,050	\$54,900
3	\$49,600	\$51,450	\$53,950	\$55,800
4	\$50,500	\$52,350	\$54,850	\$56,700
5	\$51,400	\$53,250	\$55,750	\$57,600
6	\$52,300	\$54,150	\$56,650	\$58,500
7	\$53,200	\$55,050	\$57,550	\$59,400
8	\$54,100	\$55,950	\$58,450	\$60,300
9	\$55,000	\$56,850	\$59,350	\$61,200
10	\$56,400	\$58,250	\$60,750	\$62,600
11	\$57,300	\$59,150	\$61,650	\$63,500
12	\$58,200	\$60,050	\$62,550	\$64,400
13	\$59,100	\$60,950	\$63,450	\$65,300
14	\$60,000	\$61,850	\$64,350	\$66,200
15	\$61,400	\$63,250	\$65,750	\$67,600
16	\$62,300	\$64,150	\$66,650	\$68,500
17	\$63,200	\$65,050	\$67,550	\$69,400
18	\$64,100	\$65,950	\$68,450	\$70,300
19	\$65,000	\$66,850	\$69,350	\$71,200
20	\$66,200	\$68,050	\$70,550	\$72,400
21	\$67,100	\$68,950	\$71,450	\$73,300
22	\$68,000	\$69,850	\$72,350	\$74,200
23	\$68,900	\$70,750	\$73,250	\$75,100
24	\$69,800	\$71,650	\$74,150	\$76,000
25	\$71,200	\$73,050	\$75,550	\$77,400
26	\$72,100	\$73,950	\$76,450	\$78,300
27	\$73,000	\$74,850	\$77,350	\$79,200
28	\$74,000	\$75,850	\$78,350	\$80,200
29	\$75,100	\$76,950	\$79,450	\$81,300
30	\$76,300	\$78,150	\$80,650	\$82,500
31	\$77,200	\$79,050	\$81,550	\$83,400

2024-2025 Salary Schedule				
Step	BS	BS+16	MS	MS+16
0	\$47,500	\$49,350	\$52,100	\$53,950
1	\$48,400	\$50,250	\$53,000	\$54,850
2	\$49,300	\$51,150	\$53,900	\$55,750
3	\$50,200	\$52,050	\$54,800	\$56,650
4	\$51,100	\$52,950	\$55,700	\$57,550
5	\$52,600	\$54,450	\$57,200	\$59,050
6	\$53,500	\$55,350	\$58,100	\$59,950
7	\$54,400	\$56,250	\$59,000	\$60,850
8	\$55,300	\$57,150	\$59,900	\$61,750
9	\$56,200	\$58,050	\$60,800	\$62,650
10	\$58,200	\$60,050	\$62,800	\$64,650
11	\$59,100	\$60,950	\$63,700	\$65,550
12	\$60,000	\$61,850	\$64,600	\$66,450
13	\$60,900	\$62,750	\$65,500	\$67,350
14	\$61,800	\$63,650	\$66,400	\$68,250
15	\$63,600	\$65,450	\$68,200	\$70,050
16	\$64,500	\$66,350	\$69,100	\$70,950
17	\$65,400	\$67,250	\$70,000	\$71,850
18	\$66,300	\$68,150	\$70,900	\$72,750
19	\$67,200	\$69,050	\$71,800	\$73,650
20	\$68,700	\$70,550	\$73,300	\$75,150
21	\$69,600	\$71,450	\$74,200	\$76,050
22	\$70,500	\$72,350	\$75,100	\$76,950
23	\$71,400	\$73,250	\$76,000	\$77,850
24	\$72,300	\$74,150	\$76,900	\$78,750
25	\$73,800	\$75,650	\$78,400	\$80,250
26	\$74,700	\$76,550	\$79,300	\$81,150
27	\$75,600	\$77,450	\$80,200	\$82,050
28	\$76,700	\$78,550	\$81,300	\$83,150
29	\$77,900	\$79,750	\$82,500	\$84,350
30	\$79,200	\$81,050	\$83,800	\$85,650

CUSD #5 Extra Duty Stipends

After 5 years in the position listed below, the coach/sponsor will receive a longevity bonus of 15% above the listed value each successive year (beginning year 6). After 10 years of service in a position, the longevity bonus will increase to 30% above the listed value (beginning year 11). Years of service within the same sport or activity, regardless of the position occupied, will be recognized for the purposes of longevity compensation.

\$6500

High School Varsity Football
High School Varsity Boys Basketball
High School Varsity Girls Basketball
High School Band Director

\$5000

High School Varsity Football Assistant x 2
High School JV Boys Basketball
High School Basketball Assistant
High School JV Girls Basketball
High School Cheerleading

\$4500

High School Football Assistant x 2
High School Baseball
High School Softball
High School Boys Track
High School Girls Track
High School Boys Soccer
High School Girls Soccer
High School Volleyball
High School Wrestling
Junior High Boys Basketball
Junior High Girls Basketball

\$3500

High School Bowling
High School Cross Country
High School Volleyball Assistant
Junior High JV Boys Basketball
Junior High JV Girls Basketball

\$3000

High School Wrestling Assistant
High School Dance Team
High School Boys Golf
High School Girls Golf
High School Scholar Bowl
JH/HS Choral Director & Musical
Junior High Baseball
Junior High Softball

\$3000

Junior High Boys Track
Junior High Girls Track
Junior High Cross Country
Junior High Cheerleading

\$2500

High School Track Assistant x 2
High School Baseball Assistant x 2
High School Softball Assistant x 2
High School Boys Soccer Assistant
High School Girls Soccer Assistant
Junior High Volleyball

\$1500

Teacher Leaders x 25
High School Bass Fishing
High School E-Sports
High School Scholar Bowl Assistant
High School Cheer Assistant
High School Dance Assistant
High School Publications
High School Fall Play x 2
JH/HS Art Director
Junior High Yearbook
PreK-6 Yearbook
CIS Choral Director (4-6)
Tri-C Choral Director (K-3)

\$1000

High School Bowling Assistant
High School Cross Country Assistant
High School Head Class Sponsor x 4
Junior High Volleyball Assistant
Junior High Baseball Assistant
Junior High Softball Assistant
Junior High Scholar Bowl
Junior High Cross Country Assistant
Junior High Cheerleading Assistant
Junior High Track Assistant

\$750

RTI Coach x 4 (1/building)
 PBIS Coach x 4 (1/building)
 High School National Honor Society
 High School Youth and Government
 High School FBLA
 High School FCCLA
 High School Lifesavers
 High School Student Council x 2
 Junior High Band

\$500

Future Ready Schools Team x 8 (2/building)
 High School Interact Club
 High School ACES
 High School Class Sponsor x 10
 High School Science Club
 High School Musical Assistant x 2
 High School Educators Rising
 High School Foreign Language Club
 High School Rocket Team
 High School Health Occupations Club
 Junior High Bowling
 Junior High Student Council - JH SLC
 Junior High Variety Play x 3
 Junior High FBLA

Additional Extra-Duty Stipends:

Bus Chaperone	\$60
Ticket Selling (2 hrs. min)	\$25 / hr
Detention Supervisor	\$25 / hr (2022-23)
	\$27.50 / hr (2023-24)
	\$30 / hr (2024-25)
Summer Drivers Ed/Driving Time	\$40 / hr
Summer School	\$40 / hr
School Dance Chaperone	\$75 per dance*

*Maximum of 5 per dance; these chaperones are in addition to the class sponsors already required to attend that particular dance.

Carterville Community Unit School District No. 5

New Certified Staff Employment Terms Acknowledgement Form

Certified Teaching Staff Member:

On behalf of Carterville Community Unit School District No. 5's School Board (District), we welcome you as a new member of the District's certified teaching staff.

Your employment will begin on _____ and your employment as a certified staff member will be under terms of the current collective bargaining agreement between the District and the Carterville Education Association, IEA/NEA.

Following is a summary of your compensation and fringe benefits package for the school term which will commence with the pay check on _____ and end with the pay check on _____.

Compensation for 20____ - 20____

Step/Lane _____

	Description	Amount	TRS Creditable Wages
	Salary	_____	
	Extra Duty	_____	

Total (Base Salary + Extra Duty)		_____	
	Per Pay (24 Pays)	_____	

Fringe Benefits Paid 100% by the District on Your Behalf:

Teacher Retirement System Employee's Contribution	\$ _____
Teachers Health Insurance System Employee's Contribution	\$ _____
Health Insurance – Single Coverage	\$ _____
Dental Insurance – Single Coverage	\$ _____
Life Insurance – Single Coverage	\$ _____

Total Fringe Benefits Paid by District \$ _____

Total Compensation for Your Certified Staff Position \$ _____

Sincerely,

Keith Liddell, Superintendent

Please sign and date acknowledging your employment by the District for _____ school year.

Employee

Date